

Stereo. HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
(JUDICIAL DEPARTMENT)

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Civil Revision No. 4025 of 2010

Mst. Kafia Begum (deceased) through legal heirs, etc.

Versus

Alam Ali (deceased) through legal heirs, etc.

JUDGMENT

Date of hearing	20.04.2026
For the Petitioners	M/s Muhammad Shahzad Shoukat, Barrister Taha Shoukat and Barrister Muhammad Salman Khalid, Advocates.
For the Respondents	M/s Imran Muhammad Sarwar, Rana Muhammad Ansar, Rana Shahzad Khalid and Saeed-ur-Rehman, Advocates for respondent No. 7. M/s Abdul Ghafoor and Ch. Muhammad Saleem Kamboh, Advocate for respondent No. 9.

ASIM HAFEEZ, J. This Civil Revision is directed against concurrent decisions, in terms whereof petitioner’s suit was dismissed vide judgment of 18.05.2004, and appeal preferred by petitioners was also dismissed on 04.11.2010 – earlier appeal against judgment of 18.05.2004 was allowed on 28.01.2006, which decision was reversed through judgment of 10.10.2007 in Civil Revision No.252/2006 and matter was remanded to the Appellate court.

2. Facts of the case are simple. Petitioners, claim to be the daughters of Sharifan Bibi widow of Asghar Ali, filed suit for declaration on 26.01.2000 seeking invalidation of Mutation No.11 dated 25.09.1962 on the premise that petitioners were deprived from inheriting share from their mother. It was claimed that petitioners

lately gained knowledge of impugned Mutation No.11 and upon continued failing of respondents to acknowledge petitioner's rights, they resorted to legal action - petitioners precisely pleaded respondents' failure to share the produce / yield from the land, after sharing said produce / yield for quite along period with their mother and later with them as well.

3. Alleged claim was disputed on the premise that petitioners were not the daughters of late Sharifan Bibi. Issues were framed and evidence was recorded, whereafter suit was dismissed. Appeal was allowed, but order was set-aside while allowing Civil Revision No. 252/2006. And matter was remanded to Appellate court for recording of cross-examination of Afsari Begum, lady, who was one of the defendants in suit and earlier appeared before the trial court and made conceding statement in favour of the petitioners. During pendency of appeal proceedings, Afsari Begum passed away; thereafter, Appellate court proceeded to decide the appeal on merits, whereby appeal was dismissed, while affirming judgment dated 18.05.2004.

4. Learned counsel for the petitioners contends that Appellate court failed to construe the scope of Article 46(5) of Qanun-e-Shahadat Order, which renders statement of Afsari Begum relevant and admissible in wake of her demise. Submits that husband of Afsari Begum appeared as PW-3 who stated that petitioners were daughters of Sharifan Bibi, which statement is admissible in terms of Article 64 of Qanun-e-Shahadat Order, 1984. Submits that statement recorded by Afsari Begum constitutes an admission within the meaning of Article 31 of Qanun-e-Shahadat Order 1984. Learned counsel placed reliance

on the cases of “Muhammad Amir and others Vs. Mst. Beevi and others” (2007 SCMR 614), “Mst. Tahira Parveen and 3 others Vs. Mst. Saba Jamil and 3 others” (2008 CLC 484), “Anees A. Sheikh Vs. Col (Retd). Ghulam Masood Qureshi” (2005 SCMR 977), “Mst. Zinat-un-Nisa and 2 others Vs. Abdul Wahab and another” (2005 CLC 1383), “Qutab Din and another Vs. Faiz Muhammad and 10 others” (2006 CLC 1486), “Mst. Mangti Vs. Mst. Noor and others” (1995 CLC 210), “Abdul Ghafoor and others Vs. Kallu and others” (2008 SCMR 452), “Mir Ajam Khan Vs. Mst. Qureshi Sultana and others” (2006 SCMR 1927), “Muhammad Rafiq and others Vs. Muhammad Ali and others” (2004 SCMR 704) and “Ghulam Ali and 2 others Vs. Mst. Ghulam Sarwar Naqvi” (PLD 1990 Supreme Court 1).

5. Heard. Record perused.

6. Article 46(5) of Qanun-e-Shahadat Order, 1984 is not attracted in terms of principle *ante litem motam*, as the statement was made after the dispute had arisen, therefore, no admissibility or weightage is legally attributable to the statement of late Afsari Begum. Constraints prescribed under clause (5) of Article 46 of Qanun-e-Shahadat Order, 1984 are clear.

7. With the assistance of counsel, I have examined the evidence of PW-3, which fails to meet the requirements of Article 64 of Qanun-e-Shahadat Order, 1984. This point calls for elucidation. Article 64 of Qanun-e-Shahadat Order, 1984 reads as,

64. Opinion on relationship when relevant .– When the Court has to form an opinion as to the relationship of one person to another, the opinion, expressed by conduct, as to the existence of such relationship, of any person who, as a member of the family or otherwise, has special means of knowledge on the subject, is a relevant fact:

Provided that such opinion shall not be sufficient to prove a marriage in proceedings under the Divorce Act 1869 (IV of 1869), or in prosecutions under Section 494 or 495 of the Pakistan Penal Code (Act XLV of 1860).

8. PW-3 fails to prove relationship of petitioners as daughters of Sharifan Bibi. Relationship is a relevant fact. In terms of Article 64 of Qanun-e-Shahadat Order, 1984, what is made admissible is the opinion as expressed by the conduct and such opinion shall be of a member of the family or otherwise, who possess special means of knowledge on the subject of relationships. Mere appearing and stating that petitioners were daughters of Sharifan Bibi is not enough to meet the test of admissibility of evidence. In the case of **Chandu Lal Agarwala, Karta of joint family and of firm named Hanutram Lekram Agarwalla and another v. Bibi Khatemonnessa w/o Safikuddin Ahamed and others** [AIR (30) 1934 Calcutta 76] distinction was drawn between ‘reputation evidence’ and ‘opinion’ expressed by conduct in the context of Article 64 of Qanun-e-Shahadat Order, 1984 [Section 50 of the Evidence Act 1872 [above-referred decision was cited as an authority in the case of **Dolgobinda Paricha v. Nimai Charan Misra and others** [AIR 1950 Supreme Court 914]. Upon perusal of evidence of PW-3, this court cannot infer an opinion as to relationship when requirements of Article 64 of Qanun-e-Shahadat Order, 1984 were not fulfilled - *Factum Probandum* [fact-in-issue] remained unproved. PW-3’s opinion is neither expressed with respect to the conduct nor same had no special means of knowledge on the subject of relationship.

9. Further, I am afraid that Article 31 of Qanun-e-Shahadat Order, 1984 is attracted in the context of inadmissible statement of Afsari

Begum, when she was not cross examined with respect to her statement. Notably Afsari Begum contested petitioner's claim while filing written statement, collectively with others. There is another deficiency – petitioner did not appear to testify and instead her attorney appeared, who had no direct knowledge of the events. There is no plausible explanation. There is no tangible and believable evidence produced by petitioners to substantiate claim that share / produce of the land was shared with the petitioners.

10. Lapse of almost 40 years is another impediment. There is no cavil that in matters of inheritance, courts had liberally applied limitation, however, petitioners were required to bring cogent evidence on record to justify their silence for forty years, which they apparently failed. There is no explanation that why after demise of their so-called mother they did not seek their share in her inheritance. Judgements referred are distinguishable on facts. I find no illegality in concurrently passed decisions and in particular decision of the Appellate court, wherein effect of the statement of Afsari Begum, post – order of civil revision – was considered and her evidence was declared inadmissible.

11. In view of the above, civil revision fails on merits and same is, hereby, dismissed.

(Asim Hafeez)
Judge

M. Nadeem/

APPROVED FOR REPORTING.

Judge